

25NNCV07714 25NNCV07714

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25NNCV07714 Hearing Date: September 23, 2026 Dept: E

Hearing Date: 09/23/2026 – 8:30

a.m.

Case No.: 25NNCV07714

Trial Date: 6/21/2027

Case Name: ROBERT VILLEGAS, an individual v. BEST BUY STORES, L.P.; CALEDGE INVESTMENTS, LLC; and DOES 1-50, inclusive

2 TENTATIVE RULINGS – MSJ

TENTATIVE RULINGS

There are two motions for summary judgment on calendar for 9/23/2026.

Defendant, Best Buy, has an MSJ on hearing with a Reservation I.D. ending in # 2404.

Defendant, Caledge, has an MSJ on hearing with a Reservation I.D. ending in # 1691.

Generally speaking, Defendants' MSJs argue that video evidence shows that Plaintiff tripped over his own foot; therefore, there was no dangerous condition at the premises.

Plaintiff, Robert Villegas, files

two oppositions to oppose Defendants' MSJs.

Problematic here is that

Plaintiff fails to submit the evidence he relies on [Villegas Depo. Vol. II and portions of Villegas Depo. Vol. I] to oppose the MSJs.

For example, in relevant part,

Plaintiff opposes Defendants' MSJs by submitting Plaintiff's Response Separate Statement by citing to Volume II of Plaintiff's [Villegas] deposition testimony; however, Plaintiff did not submit Volume II of the Villegas deposition. (See Pl. Resp. Sep. Stmt., UMFs 7, 8, 9, 11; see also PAMF generally.)

Further, Plaintiff opposes

Defendants' MSJs via Plaintiff's Additional Material Facts [PAMF], and that document also cites to evidence that Plaintiff failed to submit.

For example, not only does

Plaintiff's PAMF cite to Volume II of the Villegas deposition, but Plaintiff's PAMF cites to portions of Volume I of the Villegas deposition that were not submitted to this Court.

Although Defendants' moving

papers submit a limited portion of Volume I of the Villegas deposition [pages 29, 30, 31, & 87], Plaintiff's PAMF cites to portions of Volume I of the Villegas deposition [pages 80, 81, & 82] that Plaintiff fails to submit to the Court and that were not submitted to the Court via Defendants' moving papers.

How can the Court tell if

Plaintiff successfully opposed, or unsuccessfully opposed, Defendants' MSJs when Plaintiff does not submit the evidence that Plaintiff relies on to oppose Defendants' MSJs?

"The opposition, where

appropriate, shall consist of affidavits, declarations, admissions, answers to interrogatories, depositions, and matters of which judicial notice shall or may be taken." (CCP, § 437c(b)(2).)

If Plaintiff's Response Separate

Statement, or Plaintiff's Additional Material Facts, is going to dispute/oppose Defendants' MSJs by citing to evidence, then Plaintiff needs to submit the evidence

it cites to to successfully oppose Defendants' MSJs.

In addition to the fact that Plaintiff cites to evidence in Plaintiff's Response Separate Statement and Plaintiff's Additional Material Facts that Plaintiff did not submit, Plaintiff did not submit code-compliant separate statements.

Under California Rules of Court (CRC), rule 3.1350(f):

The Separate Statement in Opposition to Motion must be in the two-column format specified in (h).

(1) Each material fact claimed by the moving party to be undisputed must be set out verbatim on the left side of the page, below which must be set out the evidence said by the moving party to establish that fact, complete with the moving party's references to exhibits.

(2) On the right side of the page, directly opposite the recitation of the moving party's statement of material facts and supporting evidence, the response must unequivocally state whether that fact is "disputed" or "undisputed." An opposing party who contends that a fact is disputed must state, on the right side of the page directly opposite the fact in dispute, the nature of the dispute and describe the evidence that supports the position that the fact is controverted. Citation to the evidence in support of the position that a fact is controverted must include reference to the exhibit, title, page, and line numbers.

(3) If the opposing party contends that additional material facts are pertinent to the disposition of the motion, those facts must be set forth in the separate statement. The separate statement should include only material facts and not any facts that are not pertinent to the disposition of the motion. Each fact must be followed by the evidence that establishes the fact. Citation to the evidence in support of each material fact must include reference to the exhibit, title, page, and line numbers.

(CRC, rule 3.1350(f).)

For example, Plaintiff's Response Separate Statement did not comply with CRC, rule 3.1350(f)(1). In the left side

column of the page, Plaintiff does not set out the evidence said by the moving party to establish that fact, nor does Plaintiff include the moving party's references to exhibits.

Additionally, Plaintiff's Response

Separate Statement does not comply with CRC, rule 3.1350(f)(2). When Plaintiff disputes Defendants' UMFs, on the right side of the page, Plaintiff was supposed to cite to the evidence in support of the position that is controverted, with reference to the exhibit, title, page, and line numbers. (CRC, rule 3.1350(f)(2).) In many instances, Plaintiff simply cites to Plaintiff's PAMFs instead of actually citing to the exhibit, title, page, and line numbers of the evidence used to support Plaintiff's argument. (See Pl. Resp. Sep. Stmt. # 3, citing to "See PAMF Nos. 3-11.")

At the hearing, the Court will discuss the new timeline for Plaintiff to submit code-compliant separate statements and submission of evidence. Additionally, the Court will discuss the new timeline for Defendants submitting appropriate reply documents, if Defendants need to submit new reply documents in response to Plaintiff's amended separate statements.

Neither party is to change the substance of their arguments or assert new arguments.

The Court is simply allowing Plaintiff to submit code-compliant separate statements and submission of evidence that Plaintiff cites to.

"In certain instances, particularly before granting summary judgment or adjudication, an opportunity to correct deficiencies in the separate statement may be appropriate." (Beltran v. Hard Rock Hotel Licensing, Inc. (2023) 97 Cal.App.5th 865, 876, fn. 5 citing Parkview Villas Assn., Inc. v. State Farm Fire & Casualty Co. (2005) 133 Cal.App.4th 1197, 1215-1216; see Rush v. White Corp. (2017) 13 Cal.App.5th 1086, 1100.)

The Court notes that it received the Notice of Lodging of Surveillance Video in Support of Caledge Investments, LLC's Motion for Summary Judgment and that the Court attempted to view the video file on the thumb drive. The Court

was unable to access the file, despite running the included Genetec Video Player on a standalone laptop. The Court will ask counsel to play the video for the Court at the hearing, or at a continued hearing.